

RIGHTS AND LIABILITIES OF THE GOVERNMENT

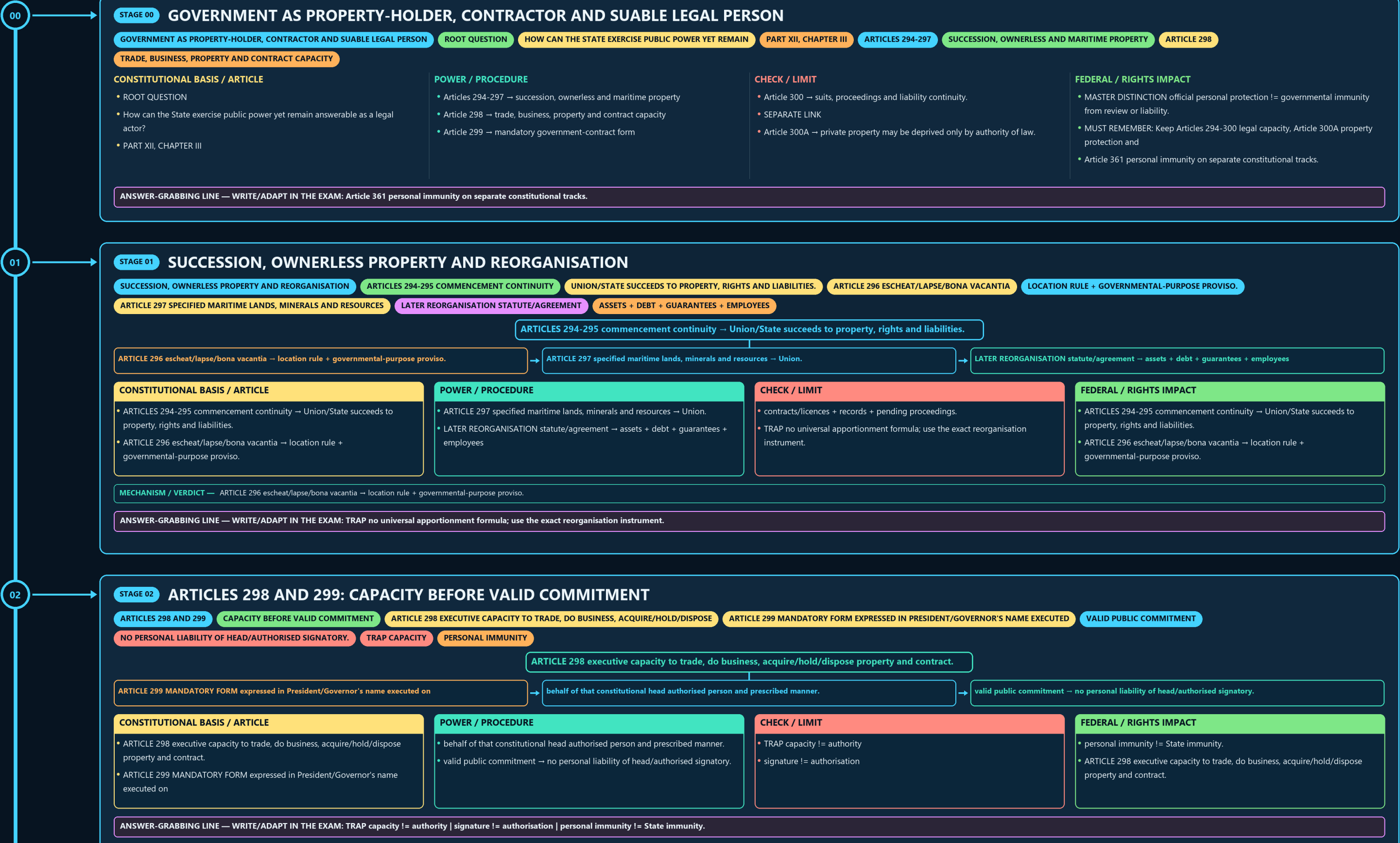
GOVERNMENT AS PROPERTY-HOLDER, CONTRACTOR → SUCCESSION, OWNERLESS PROPERTY AND → ARTICLES 298 AND 299 → DEFECTIVE CONTRACT AND RESTITUTION → ARTICLE 300 AND THE → PRIVATE TORT AND THE

Read the thick cyan rail from Stage 00 to the final core synthesis. Each card uses a concept-appropriate structure; the grey E card is optional enrichment only and never repairs missing core content.

PRIMARY CORE FLOW SUBORDINATE EXTRA APPROVAL / REVIEW

Approval: FALSE • Pending user review • source generation g4 and all prior artifacts unchanged

CORE BEFORE EXTRA • prior artefacts unchanged • exact same master drives poster and tiles



02

STAGE 02 ARTICLES 298 AND 299: CAPACITY BEFORE VALID COMMITMENT

ARTICLES 298 AND 299 CAPACITY BEFORE VALID COMMITMENT ARTICLE 298 EXECUTIVE CAPACITY TO TRADE, DO BUSINESS, ACQUIRE/HOLD/DISPOSE ARTICLE 299 MANDATORY FORM EXPRESSED IN PRESIDENT/GOVERNOR'S NAME EXECUTED VALID PUBLIC COMMITMENT
NO PERSONAL LIABILITY OF HEAD/AUTHORISED SIGNATORY. TRAP CAPACITY PERSONAL IMMUNITY

ARTICLE 298 executive capacity to trade, do business, acquire/hold/discard property and contract.

ARTICLE 299 MANDATORY FORM expressed in President/Governor's name executed on

→ behalf of that constitutional head authorised person and prescribed manner.

→ valid public commitment → no personal liability of head/authorised signatory.

CONSTITUTIONAL BASIS / ARTICLE

- ARTICLE 298 executive capacity to trade, do business, acquire/hold/discard property and contract.
- ARTICLE 299 MANDATORY FORM expressed in President/Governor's name executed on

POWER / PROCEDURE

- behalf of that constitutional head authorised person and prescribed manner.
- valid public commitment → no personal liability of head/authorised signatory.

CHECK / LIMIT

- TRAP capacity != authority
- signature != authorisation

FEDERAL / RIGHTS IMPACT

- personal immunity != State immunity.
- ARTICLE 298 executive capacity to trade, do business, acquire/hold/discard property and contract.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: TRAP capacity != authority | signature != authorisation | personal immunity != State immunity.

03

STAGE 03 DEFECTIVE CONTRACT AND RESTITUTION

DEFECTIVE CONTRACT AND RESTITUTION ARTICLE 299 DEFECT PURPORTED CONTRACT UNENFORCEABLE AS GOVERNMENT CONTRACT. INDEPENDENT SECTION 70 ROUTE LAWFUL ACT/DELIVERY + NON-GRATUITOUS INTENTION RESTITUTION MEASURED BY BENEFIT.
B.K. MONDAL & SONS (1961) NON-GRATUITOUS BENEFIT CAN CREATE MULAMCHAND V. STATE OF MADHYA PRADESH (1968) MANDATORY ARTICLE LIMIT QUANTUM MERUIT DOES NOT VALIDATE THE CONTRACT OR

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
ARTICLE 299 DEFECT purported contract unenforceable as government contract.	restitution measured by benefit.	Mulamchand v. State of Madhya Pradesh (1968) mandatory Article 299 form remains separate.	ARTICLE 299 DEFECT purported contract unenforceable as government contract.
INDEPENDENT SECTION 70 ROUTE lawful act/delivery + non-gratuitous intention + government enjoys benefit	B.K. Mondal & Sons (1961) non-gratuitous benefit can create restitutionary liability.	LIMIT quantum meruit does not validate the contract or automatically award contract price.	INDEPENDENT SECTION 70 ROUTE lawful act/delivery + non-gratuitous intention + government enjoys benefit
CONSTITUTIONAL BASIS / ARTICLE - ARTICLE 299 DEFECT purported contract unenforceable as government contract. - INDEPENDENT SECTION 70 ROUTE lawful act/delivery + non-gratuitous intention + government enjoys benefit	POWER / PROCEDURE - restitution measured by benefit. - B.K. Mondal & Sons (1961) non-gratuitous benefit can create restitutionary liability.	CHECK / LIMIT - Mulamchand v. State of Madhya Pradesh (1968) mandatory Article 299 form remains separate. - LIMIT quantum meruit does not validate the contract or automatically award contract price.	FEDERAL / RIGHTS IMPACT - ARTICLE 299 DEFECT purported contract unenforceable as government contract. - INDEPENDENT SECTION 70 ROUTE lawful act/delivery + non-gratuitous intention + government enjoys benefit

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: LIMIT quantum meruit does not validate the contract or automatically award contract price.

04

STAGE 04 ARTICLE 300 AND THE CIVIL-SUIT ROUTE

ARTICLE 300 AND THE CIVIL-SUIT ROUTE PROPER PARTY UNION MATTER UNION OF INDIA STATE MATTER NAME OF STATE. CPC SECTION 79 PARTY DESCRIPTION IN GOVERNMENT LITIGATION. CPC SECTION 80 ORDINARY OFFICIAL-ACT SUIT

CONSTITUTIONAL BASIS / ARTICLE

- PROPER PARTY
- Union matter → Union of India
- State matter → name of State.

POWER / PROCEDURE

- CPC SECTION 79 party description in government litigation.
- CPC SECTION 80 ordinary official-act suit → two-month prior notice
- Section 80(2) court-controlled urgent/immediate-relief route.

CHECK / LIMIT

- PROCEEDING cause of action → correct party → notice/exception → pleading/evidence
- decree/appeal/enforcement subject to law.
- TRAP procedural notice != substantive sovereign immunity.

FEDERAL / RIGHTS IMPACT

- CPC SECTION 79 party description in government litigation.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: PROCEEDING cause of action → correct party → notice/exception → pleading/evidence.

05

STAGE 05 PRIVATE TORT AND THE NARROWING OF SOVEREIGN IMMUNITY

PRIVATE TORT AND THE NARROWING OF SOVEREIGN IMMUNITY P & O STEAM NAVIGATION (1861) COLONIAL SOVEREIGN/NON-SOVEREIGN DISTINCTION. STATE OF RAJASTHAN V. VIDYAWATI (1962) ORDINARY OPERATIONAL NEGLIGENCE KASTURI LAL V. STATE OF UTTAR PRADESH (1964) OLDER
N. NAGENDRA RAO & CO. (1994) BROAD IMMUNITY UNTENABLE VERDICT NO BLANKET FORMULA IDENTIFY FUNCTION, DUTY, CAUSATION AND REMEDY. CLOSE DISTINCTION

P & O Steam Navigation (1861) colonial sovereign/non-sovereign distinction.

→ State of Rajasthan v. Vidyawati (1962) ordinary operational negligence can attract State liability.

→ Kasturi Lal v. State of Uttar Pradesh (1964) older police-sovereign immunity line.

→ N. Nagendra Rao & Co. (1994) broad immunity untenable in welfare State; any residue is

→ VERDICT no blanket formula: identify function, duty, causation and remedy.

CONSTITUTIONAL BASIS / ARTICLE

POWER / PROCEDURE

CHECK / LIMIT

FEDERAL / RIGHTS IMPACT

05

STAGE 05

PRIVATE TORT AND THE NARROWING OF SOVEREIGN IMMUNITY

PRIVATE TORT AND THE NARROWING OF SOVEREIGN IMMUNITY

N. NAGENDRA RAO & CO. (1994) BROAD IMMUNITY UNTENABLE

P & O STEAM NAVIGATION (1861) COLONIAL SOVEREIGN/NON-SOVEREIGN DISTINCTION.

STATE OF RAJASTHAN V. VIDYAWATI (1962) ORDINARY OPERATIONAL NEGLIGENCE

KASTURI LAL V. STATE OF UTTAR PRADESH (1964) OLDER

VERDICT NO BLANKET FORMULA

IDENTIFY FUNCTION, DUTY, CAUSATION AND REMEDY.

CLOSE DISTINCTION

P & O Steam Navigation (1861) colonial sovereign/non-sovereign distinction.

State of Rajasthan v. Vidyawati (1962) ordinary operational negligence can attract State liability.

Kasturi Lal v. State of Uttar Pradesh (1964) older police-sovereign immunity line.

N. Nagendra Rao & Co. (1994) broad immunity untenable in welfare State; any residue is

VERDICT no blanket formula: identify function, duty, causation and remedy.

CONSTITUTIONAL BASIS / ARTICLE

POWER / PROCEDURE

CHECK / LIMIT

FEDERAL / RIGHTS IMPACT

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: PROCEEDING cause of action → correct party → notice/exception → pleading/evidence.

06

STAGE 06

CONSTITUTIONAL TORT AND VICARIOUS RESPONSIBILITY

CONSTITUTIONAL TORT AND VICARIOUS RESPONSIBILITY

PUBLIC-LAW COMPENSATION

RUDUL SAH V. STATE OF BIHAR (1983)

UNLAWFUL DETENTION COMPENSATION.

NILABATI BEHERA V. STATE OF ORISSA (1993)

FUNDAMENTAL-RIGHT REMEDY DISTINCT.

STATE OF ANDHRA PRADESH V. CHALLA RAMKRISHNA REDDY (2000)

PRISON-RIGHTS ACCOUNTABILITY.

Rudul Sah v. State of Bihar (1983) → unlawful detention compensation.

Nilabati Behera v. State of Orissa (1993) → Fundamental-Right remedy distinct.

State of Andhra Pradesh v. Challa Ramkrishna Reddy (2000)

CONSTITUTIONAL BASIS / ARTICLE

POWER / PROCEDURE

CHECK / LIMIT

FEDERAL / RIGHTS IMPACT

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: LIMIT writ compensation vindicates rights; it does not replace every civil trial.

07

STAGE 07

PROPERTY, PROCUREMENT, ARBITRATION AND PROTECTION BOUNDARIES

PROPERTY, PROCUREMENT, ARBITRATION AND PROTECTION BOUNDARIES

ARTICLE 300A DEPRIVATION OF PRIVATE PROPERTY ONLY BY AUTHORITY

PROCUREMENT RAIL NEED/SANCTION

FAIR CRITERIA/COMPETITION

REASONED AWARD

ARTICLE 299 EXECUTION

ARBITRATION VALID AUTHORISED CLAUSE

STATUTORY CHALLENGE/ENFORCEMENT.

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
ARTICLE 300A deprivation of private property only by authority of law.	ARBITRATION valid authorised clause → tribunal → award → statutory challenge/enforcement.	Article 299 signatory rule	GeM/manual/draft reform != constitutional or statutory amendment.
PROCUREMENT RAIL need/sanction → fair criteria/competition → reasoned award	PROTECTION FIREWALL	CPC notice	
Article 299 execution → performance/payment → CAG/audit.	Article 361	privilege are separate sources with separate limits.	

CONSTITUTIONAL BASIS / ARTICLE

POWER / PROCEDURE

CHECK / LIMIT

FEDERAL / RIGHTS IMPACT

RIGHTS AND LIABILITIES OF THE GOVERNMENT • TILE 3/5 • same master rows 4508-7742 of 12250 • continues below

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: LIMIT writ compensation vindicates rights; it does not replace every civil trial.

07

STAGE 07 PROPERTY, PROCUREMENT, ARBITRATION AND PROTECTION BOUNDARIES

PROPERTY, PROCUREMENT, ARBITRATION AND PROTECTION BOUNDARIES

ARTICLE 300A DEPRIVATION OF PRIVATE PROPERTY ONLY BY AUTHORITY

PROCUREMENT RAIL NEED/SANCTION

FAIR CRITERIA/COMPETITION

REASONED AWARD

ARTICLE 299 EXECUTION

ARBITRATION VALID AUTHORISED CLAUSE

STATUTORY CHALLENGE/ENFORCEMENT.

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
ARTICLE 300A deprivation of private property only by authority of law.	ARBITRATION valid authorised clause → tribunal → award → statutory challenge/enforcement.	Article 299 signatory rule	GeM/manual/draft reform != constitutional or statutory amendment.
PROCUREMENT RAIL need/sanction → fair criteria/competition → reasoned award	PROTECTION FIREWALL	CPC notice	
Article 299 execution → performance/payment → CAG/audit.	Article 361	privilege are separate sources with separate limits.	
CONSTITUTIONAL BASIS / ARTICLE - ARTICLE 300A deprivation of private property only by authority of law. - PROCUREMENT RAIL need/sanction → fair criteria/competition → reasoned award - Article 299 execution → performance/payment → CAG/audit.	POWER / PROCEDURE - ARBITRATION valid authorised clause → tribunal → award → statutory challenge/enforcement. - PROTECTION FIREWALL - Article 361	CHECK / LIMIT - Article 299 signatory rule - CPC notice - privilege are separate sources with separate limits.	FEDERAL / RIGHTS IMPACT GeM/manual/draft reform != constitutional or statutory amendment.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Article 361 | Article 299 signatory rule | CPC notice | sanction | privilege are separate sources with separate limits.

08

STAGE 08 ARTICLE 300A: ACQUISITION DISCIPLINE AND SEVEN SAFEGUARDS

ARTICLE 300A

ACQUISITION DISCIPLINE AND SEVEN SAFEGUARDS

ARTICLE 300A EVERY PERSON

NO DEPRIVATION OF PROPERTY EXCEPT BY AUTHORITY OF LAW.

K.T. PLANTATION (2011) PUBLIC PURPOSE + NO ARBITRARY/CONFISCATORY LAW

VIDYA DEVI (2020) UNSUPPORTED EXECUTIVE OCCUPATION

LAWFUL ACQUISITION.

BIMAL KUMAR SHAH (2024 INSC 435) NOTICE

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
- ARTICLE 300A every person → no deprivation of property except by authority of law. - K.T. Plantation (2011) public purpose + no arbitrary/confiscatory law + no illusory compensation.	- Vidya Devi (2020) unsupported executive occupation != lawful acquisition. - Bimal Kumar Shah (2024 INSC 435) notice → hearing → reasoned decision → public purpose	- fair compensation/restitution → efficient process → conclusion. - TRAP constitutional right outside Part III; neither a Fundamental Right nor a mere statutory right.	- ARTICLE 300A every person → no deprivation of property except by authority of law. - K.T. Plantation (2011) public purpose + no arbitrary/confiscatory law + no illusory compensation.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: TRAP constitutional right outside Part III; neither a Fundamental Right nor a mere statutory right.

09

STAGE 09 STATE SECRETS: EVIDENCE PRIVILEGE AND RTI ARE DISTINCT

STATE SECRETS

EVIDENCE PRIVILEGE AND RTI ARE DISTINCT

LITIGATION-EVIDENCE ROUTE

BSA SECTION 129

UNPUBLISHED OFFICIAL RECORDS CONCERNING AFFAIRS OF STATE.

BSA SECTION 130

OFFICIAL CONFIDENCE WHERE PUBLIC INTEREST WOULD SUFFER.

RAJ NARAIN (1975) + S.P. GUPTA (1981)

LITIGATION-EVIDENCE ROUTE → BSA section 129 → unpublished official records concerning affairs of State. → BSA section 130 → official confidence where public interest would suffer. → Raj Narain (1975) + S.P. Gupta (1981) → no absolute executive secrecy. → RTI ROUTE section 8(1)(a) specified prejudicial harms				
CONSTITUTIONAL BASIS / ARTICLE - LITIGATION-EVIDENCE ROUTE - BSA section 129 → unpublished official records concerning affairs of State.		POWER / PROCEDURE - BSA section 130 → official confidence where public interest would suffer. - Raj Narain (1975) + S.P. Gupta (1981) → no absolute executive secrecy.	CHECK / LIMIT - RTI ROUTE section 8(1)(a) specified prejudicial harms - section 8(2) public-interest override	FEDERAL / RIGHTS IMPACT - section 22 priority over inconsistent law, including Official Secrets Act. - DECISION TEST exact source → identified harm → severance → public-interest balance → reasons → review.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: DECISION TEST exact source → identified harm → severance → public-interest balance → reasons → review.

10

STAGE 10 CHOOSE THE CORRECT REMEDY AND PROTECTION

CHOOSE THE CORRECT REMEDY AND PROTECTION

START WITH THE WRONG, NOT A BLANKET IMMUNITY VALID

DEFECTIVE FORM + RETAINED BENEFIT

SECTION 70 RESTITUTION.

OPERATIONAL CIVIL WRONG

PRIVATE TORT.

FUNDAMENTAL-RIGHT VIOLATION

PUBLIC-LAW COMPENSATION.

START WITH THE WRONG, NOT A BLANKET IMMUNITY valid contract breach → contract/arbitration.

defective form + retained benefit → section 70 restitution.				→	operational civil wrong → private tort.				→	Fundamental-Right violation → public-law compensation.					
CONSTITUTIONAL BASIS / ARTICLE				POWER / PROCEDURE				CHECK / LIMIT				FEDERAL / RIGHTS IMPACT			

affairs of State.

would suffer.

secrecy.

CONSTITUTIONAL BASIS / ARTICLE

- LITIGATION-EVIDENCE ROUTE
- BSA section 129 → unpublished official records concerning affairs of State.

POWER / PROCEDURE

- BSA section 130 → official confidence where public interest would suffer.
- Raj Narain (1975) + S.P. Gupta (1981) → no absolute executive secrecy.

CHECK / LIMIT

- RTI ROUTE section 8(1)(a) specified prejudicial harms
- section 8(2) public-interest override

FEDERAL / RIGHTS IMPACT

- section 22 priority over inconsistent law, including Official Secrets Act.
- DECISION TEST exact source → identified harm → severance → public-interest balance → reasons → review.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: DECISION TEST exact source → identified harm → severance → public-interest balance → reasons → review.

10

STAGE 10 CHOOSE THE CORRECT REMEDY AND PROTECTION

CHOOSE THE CORRECT REMEDY AND PROTECTION

START WITH THE WRONG, NOT A BLANKET IMMUNITY VALID

DEFECTIVE FORM + RETAINED BENEFIT

SECTION 70 RESTITUTION.

OPERATIONAL CIVIL WRONG

PRIVATE TORT.

FUNDAMENTAL-RIGHT VIOLATION

PUBLIC-LAW COMPENSATION.

START WITH THE WRONG, NOT A BLANKET IMMUNITY valid contract breach → contract/arbitration.

defective form + retained benefit → section 70 restitution.

operational civil wrong → private tort.

Fundamental-Right violation → public-law compensation.

CONSTITUTIONAL BASIS / ARTICLE

- START WITH THE WRONG, NOT A BLANKET IMMUNITY valid contract breach → contract/arbitration.
- defective form + retained benefit → section 70 restitution.
- operational civil wrong → private tort.
- Fundamental-Right violation → public-law compensation.

POWER / PROCEDURE

- property deprivation → Article 300A + acquisition-law remedy.
- illegal administrative decision → judicial review.
- PROCEDURE / PROTECTION FIREWALL
- CPC 79 proper party

CHECK / LIMIT

- CPC 80 notice/urgent route
- BNSS 218 sanction
- Article 361
- Article 299(2)

FEDERAL / RIGHTS IMPACT

- BSA 129-130.
- Each source has its own trigger, decision-maker, limit and remedy.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Each source has its own trigger, decision-maker, limit and remedy.

11

STAGE 11 UPSC SYNTHESIS: NO BLANKET IMMUNITY IN GOVERNMENT UNDER LAW

UPSC SYNTHESIS

NO BLANKET IMMUNITY IN GOVERNMENT UNDER LAW

PRELIMS FIREWALL

294/295 SUCCESSION

296 OWNERLESS PROPERTY

297 MARITIME RESOURCES

298 CAPACITY

299 FORM

PRELIMS FIREWALL

294/295 succession

296 ownerless property

297 maritime resources

298 capacity

CONSTITUTIONAL BASIS / ARTICLE

- PRELIMS FIREWALL
- 294/295 succession
- 296 ownerless property
- 297 maritime resources
- 298 capacity

POWER / PROCEDURE

- 300 suits
- 300A property right
- Section 70 restitution != valid contract
- Section 80 notice != immunity.
- MAINS SPINE legal person → property/succession → capacity/form

CHECK / LIMIT

- constitutional tort → procurement/arbitration → qualified reform.
- PYQ SPINE
- 2025 immunity statements test source separation, not blanket State immunity.
- VERDICT public power carries special form and protection, but remains legally answerable.
- CURRENT CONTROL: 5 SEPTEMBER 2026

FEDERAL / RIGHTS IMPACT

- Article 300A compensation. Contract, restitution, tort, constitutional compensation, review and official protection remain separate routes.
- LEGAL/SOURCE LIMIT: The official constitutional and procedural texts remain controlling; 2025
- INSC 3 reinforces timely adequate compensation under Article 300A.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: VERDICT public power carries special form and protection, but remains legally answerable.

E

EXTRA SUBORDINATE ENRICHMENT — ONLY AFTER THE COMPLETE CORE

OPTIONAL ADVANCED ENRICHMENT

1. THE STATE AS A LEGAL PERSON

2. PUBLIC AND PRIVATE LAW REMEDIES

3. ARTICLE 299 AND RELATIONAL CONTRACTING

4. RESTITUTION WITHOUT AN ENFORCEABLE CONTRACT

5. SOVEREIGN IMMUNITY AND INSTITUTIONAL INCENTIVES

6. VICARIOUS LIABILITY AND PERSONAL FAULT

7. PROCUREMENT AS CONSTITUTIONAL ADMINISTRATION

OPTIONAL DOCTRINE / CASE

- 1. The State as a legal person
- 2. Public and private law remedies
- 3. Article 299 and relational contracting
- 4. Restitution without an enforceable contract

ADVANCED LIMIT

- 5. Sovereign immunity and institutional incentives
- 6. Vicarious liability and personal fault
- 7. Procurement as constitutional administration
- 8. Arbitration and sovereign accountability

COMPARATIVE NUANCE

- 9. Reorganisation and succession
- 10. Reform framework
- force majeure and change in law;
- termination for public interest;

OPTIONAL STATUS — This optional depth is unnecessary for a competent core answer; use it only for added nuance after the complete core has been written.